

SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF NEW YORK

MARGARETANN BIANCULLI, JANET KOBREN,
MERRI LASKY, PHYLLIS LIPMAN, BARRY
SKOLNICK, on behalf of themselves and all others similarly
situated, and the NYC ORGANIZATION OF PUBLIC
SERVICE RETIREES, INC.,

Plaintiffs,

v.

THE CITY OF NEW YORK OFFICE OF LABOR
RELATIONS, the CITY OF NEW YORK,
EMBLEMHEALTH, INC., and GROUP HEALTH
INCORPORATED (GHI),

Defendants.

Index No.: 160234/2022

Hon. Lyle E. Frank

NOTICE OF CLASS ACTION LAWSUIT AND PROPOSED SETTLEMENT

To: All Medicare-eligible retired New York City employees and their Medicare-eligible dependents who were enrolled in the EmblemHealth, Inc. (“Emblem”) administered medical GHI Senior Care Plan at any time during the period of January 1, 2022 through January 31, 2023.

You are receiving this Notice because you are a member of the certified class (the “Class”) in this lawsuit, which concerns \$15 co-pays under the medical GHI Senior Care Plan. A proposed settlement has been reached and is subject to Court approval.

This Notice is being sent to all members of the Class (“Class Members”). If you did not receive a Claim Form attached to this Notice, it is because you are not eligible to claim any reimbursement for the co-pays at issue in this lawsuit (see below); however, you remain a member of the Settlement Class and will be bound by the terms of the Settlement Agreement unless you choose to opt out.

A customized Claim Form is attached to this Notice for those Class Members identified by Emblem’s records as being potentially exposed to one or more co-pays for eligible medical services during the period January 1, 2022 through January 31, 2023. Those Class Members may be eligible to receive up to a full or partial reimbursement for those co-pays.

To claim reimbursement, assuming Court approval of this Settlement, you must complete and return the enclosed Claim Form by mail or submit a Claim Form online by October 30, 2026. If you do not file a Claim Form by October 30, 2026, you will not be eligible to receive any reimbursement.

**FOR MORE INFORMATION OR QUESTIONS ABOUT THIS SETTLEMENT VISIT
WWW.SENIORCARECOPAYSETTLEMENT.COM OR CALL TOLL-FREE 1-800-814-2610.**

**PLEASE READ THIS NOTICE CAREFULLY FOR IMPORTANT INFORMATION ABOUT
YOUR RIGHTS AND DEADLINES.**

This is a court-authorized Notice to provide you with information about the class action litigation (the “Litigation” or “Lawsuit”) and the proposed settlement. This Notice explains your rights and options, how to exercise your rights, and the deadlines by which you must act. **This is not a solicitation from a lawyer and you are not being sued.**

YOUR LEGAL RIGHTS AND OPTIONS AS A CLASS MEMBER	
IF YOU DO NOT RECEIVE A CLAIM FORM	Even if you do not receive a Claim Form, you remain a Class Member, and you will be bound by the Court’s final decision and release the claims against Defendants relating to this Litigation. As a Class Member, if you disagree with or object to the Settlement, you may submit an objection to the Court (see below). You also have the right to opt out of (i.e., exclude yourself from) the Class (see below).
IF YOU RECEIVE A CLAIM FORM IT MUST BE FILED BY OCTOBER 30, 2026	If you receive a Claim Form with this Notice and want to be eligible to receive a full or partial reimbursement of the co-pays you paid, you must submit the Claim Form in accordance with the instructions and deadlines provided in this Notice. Simply receiving or returning a Claim Form does not make you eligible for an automatic payment. You must complete and send the enclosed Claim Form by mail (to the Claims Administrator at the address provided below) or submit it online using the link or QR code provided in the Claim Form. If you fail to timely submit a completed Claim Form, your claim will be deemed denied. Please note that the deadline for submitting a claim form – either by mail or online – is October 30, 2026. See Question 5 for more information on filing a Claim Form.
REQUESTING TO OPT OUT OF (EXCLUDE YOURSELF FROM) THE SETTLEMENT: BY OCTOBER 15, 2026	Whether or not you receive a Claim Form, you have the right to exclude yourself (“opt out”) from the Settlement Class. If you opt out, you will not be bound by the Settlement and will not be eligible to receive any payment from this Settlement. You will retain the right to file your own lawsuit regarding the claims being resolved by this Settlement. To opt out, you must follow the instructions provided in this Notice and submit a written request by October 15, 2026. Your opt-out request must be timely and it must comply with the procedures described in this Notice to be valid. See Question 8 for more information.
SUBMITTING AN OBJECTION BY NOVEMBER 30, 2026	Whether or not you receive a Claim Form, you may inform the Court if you disagree with or object to the Settlement. To do so, you must submit a written objection by mail to the Court and to counsel for all Parties. You must remain a member of the Settlement Class to submit an objection; that is, you cannot object to the Settlement if you opt out of the Class. You may also request to speak at the Court’s final hearing about your objection. The deadline to submit an objection is November 30, 2026. See Question 9 for more information.

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GENERAL INFORMATION

1. What is a class action and who is involved?

In a class action lawsuit, one or more people called “Class Representatives” or “Plaintiffs” file a lawsuit on behalf of themselves and other people who have similar claims, called the “Class” or “Class Members.” The entity or entities they sue are called the “Defendants.” One court resolves the issues in the lawsuit for every Class Member who does not request to be excluded.

In this Lawsuit, the Plaintiffs are retired New York City municipal workers Margaretann Bianculli, Janet Kobren, Merri Lasky, Phyllis Lipman, and Barry Skolnick (the “Retiree Plaintiffs”), and the NYC Organization of Public Service Retirees, Inc. (the “Organization”). The Defendants are the City of New York, the City of New York Office of Labor Relations (the “City”), EmblemHealth, Inc. (“Emblem”), and Group Health Incorporated (“GHI”). Plaintiffs and Defendants together are referred to as the “Parties.”

The Class in this case includes approximately 246,000 Class Members.

2. What is this Lawsuit about?

In November 2022, the Plaintiffs filed a class action lawsuit against the Defendants. The Plaintiffs sued the Defendants on behalf of themselves and on behalf of all other Medicare-eligible retired City workers and dependents who were enrolled in the medical GHI Senior Care health insurance plan at any time during the period January 1, 2022, through January 31, 2023 (“Retirees”). One of the main allegations of the complaint filed in the lawsuit was that on January 1, 2022, the Defendants improperly implemented \$15 co-pays in the Emblem-administered portion of the Senior Care Plan. The Plaintiffs argued, among other things, that the co-pays violated the contract between the City and Emblem, because the Certificate of Insurance (“COI”), which is part of the Contract, was silent as to co-pays, and stated that Medicare would pay the first 80% of any reasonable charge for a covered service, while Emblem would be responsible for the remaining 20%. The Plaintiffs also asserted other claims in the complaint such as collateral estoppel, relief under Article 7803(3) of the New York Civil Practice Law and Rules, and various statutory and common law claims. The Defendants denied all the claims alleged in the complaint.

The Plaintiffs obtained a preliminary injunction from the Court on January 11, 2023, prohibiting the further imposition of co-pays. At the time the injunction was issued, co-pays had been imposed in Senior Care for over a year. The preliminary injunction was vacated (ended) effective January 1, 2025, after Emblem filed a revised COI to expressly provide for \$15 co-pays. The \$15 co-pays were reinstated starting January 1, 2025, and remain in effect as implemented. However, pursuant to the Settlement, the co-pays currently in effect for Senior Care will not be increased beyond the current \$15 prior to December 31, 2027.

A motion for “class certification” – allowing the Plaintiffs’ lawsuit to proceed on behalf of the Class – was granted by the Court on October 20, 2023. Plaintiffs Margaretann Bianculli, Janet Kobren, Merri Lasky, Phyllis Lipman, and Barry Skolnick were appointed Class representatives; and Walden Macht Haran & Williams LLP and Pollock Cohen LLP were appointed Class counsel.

Emblem co-administers the Senior Care Plan with Anthem/Empire Blue Cross Blue Shield (“Anthem”). Emblem administers the medical component (e.g., primary physician care), while Empire administers the hospital component. ***This Litigation does not involve the co-pays for the hospital component administered by Anthem.*** This litigation only involves the \$15 co-pays implemented on January 1, 2022 in the Emblem-administered medical portion of the Senior Care Plan.

Emblem has determined that while the co-pays were in effect, most, but not all, Senior Care members received medical services that would have been subject to a co-pay, representing a maximum of approximately \$53 million in total potential co-pays.

FOR MORE INFORMATION OR QUESTIONS ABOUT THIS SETTLEMENT VISIT
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3. Why is there a Settlement?

The Court has not decided whether the Plaintiffs or the Defendants should win this case and what, if any, relief should be awarded. Instead, the Parties have agreed to the Settlement to avoid the risk, uncertainty, and delay of continued litigation. The Plaintiffs and their attorneys (“Class Counsel”) believe that the Settlement is fair and in the best interest of you and other members of the Class.

SETTLEMENT PAYMENTS AND FILING A CLAIM FORM

4. What is the Settlement Amount and how will it be distributed?

Under the terms of the proposed Settlement, Defendants’ liability is limited to an amount that shall not exceed \$53,000,000 (the “Settlement Amount”). The Settlement Amount of \$53 million represents the approximate amount of total co-pays for eligible services that Class Members *could* have incurred during the period January 1, 2022 through January 31, 2023, based on Emblem’s medical provider claims data; it does not necessarily represent the amount of co-pays actually paid by Class Members.

A hearing on the final approval of the Settlement is scheduled for **March 24, 2027 at 2:15 p.m.** Subject to Court approval, the Settlement Amount will be used first to make payments in the following order: (i) \$9,900,000 will be paid to Class Counsel as their Fees and up to \$100,000.00 will be paid to Class Counsel for Costs incurred litigating the case and representing the best interests of the Settlement Class; and then (ii) up to \$5,000 in Service Awards to each of the five individually named Plaintiffs for their services in bringing the Lawsuit and serving as Class Representatives (for a total of up to \$25,000 in Service Awards).

After first paying out Class Counsel Fees and Costs and the five Service Awards, the remainder of the Settlement Amount will constitute the “Net Settlement Amount” and will be used to pay up to full or partial reimbursements to Settlement Class Members who have timely submitted Claim Forms that are approved by the Claims Administrator as valid claims (“Approved Claims”).

If, after deductions for Class Counsel Fees, Costs, and Service Awards, the Net Settlement Amount is sufficient to reimburse all Approved Claims, then any Class Member whose claim is determined to be valid by the Claims Administrator will be eligible to receive up to full reimbursement of all co-pays for which proof of payment is submitted in accordance with the guidelines agreed to by the Parties and explained in the answer to Question 5 below. If you submit a valid claim for a co-pay but do not submit proof of payment for that co-pay, you may still be eligible for a partial reimbursement of such an “undocumented” co-pay, if you simply affirm that you actually paid the co-pay. Any partial reimbursement for undocumented co-pays will be limited to up to 40% of the co-pay amounts incurred, up to a maximum of \$100 per Class Member.

However, if the amount of Approved Claims is larger than the Net Settlement Amount and is not sufficient to fully reimburse all of the Approved Claims, payments will be reduced and distributed on a pro rata basis. The total payments under the Settlement Agreement (including Class Counsel fees and costs, Service Awards, and full or partial reimbursement for Approved Claims) shall not exceed the Settlement Amount of \$53 million.

Any Net Settlement Amount remaining after payment of Approved Claims will be returned to the Defendants.

For complete information about the Settlement or to view the Settlement Agreement and related Court documents, you can visit the Settlement Website at www.SeniorCareCopaySettlement.com or contact the Claims Administrator at the contact information provided below.

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WWW.SENIORCARECOPAYSETTLEMENT.COM OR CALL TOLL-FREE 1-800-814-2610.**

5. I received a Claim Form. What do I need to do to be eligible for payment?

Eligible Class Members identified by Emblem as being potentially exposed to at least one co-pay from January 1, 2022 through January 31, 2023 will receive a customized Claim Form with this Notice. Emblem's claims data shall be conclusive as to the identity of Class Members and the amount of co-pay exposure.

Customized Claim Form

Each eligible Class Member will receive a customized Claim Form already pre-populated with the Class Member's name and address. The Claim Form will provide the Class Member an opportunity to correct this information, if necessary. It will also include a pre-populated table, based on Emblem's medical provider claims data during the Class Period (January 1, 2022 through January 31, 2023), providing details of the Class Member's visits to medical providers from whom they received services for which the provider may have charged them a co-pay under the Emblem-administered Senior Care plan including the date of service and name of the provider, and the amount of the co-pay exposure associated with each co-pay during that period. Finally, it will include an affirmation that must be signed (the "Signed Affirmation").

Completing the Claim Form

On the Claim Form, you must provide your correct and/or changed name and address if the pre-populated information on the Claim Form is incorrect.

Second, if necessary, you should indicate whether you are submitting proof of legal name change or evidence of authority to act on behalf of the Class Member (if, for example, the Class Member is deceased) and, if so, specify the type of proof being submitted.

Third, you should provide your contact information, such as an email address and/or telephone number.

Fourth, for each co-pay listed on the pre-populated form, you should confirm whether you did in fact pay the co-pay.

Fifth, for each co-pay listed, you should indicate whether you are submitting proof that you paid the co-pay and, if so, specify the type of proof being submitted.

Finally, you must sign the affirmation at the bottom of the Claim Form. Signing is required to receive reimbursement.

The completed, signed Claim Form and any supporting documents must be submitted by **October 30, 2026**.

Documents to Submit with the Claim Form

Proof of legal name change or legal authority to act on behalf of a Class Member (if applicable) – Such proof is REQUIRED in order to be eligible for any payment under the Settlement if you changed your name or are submitting a claim for someone else. Failure to provide proof results in denial of the claim(s).

If you have changed your name, you **MUST** provide proof of legal name change (such as a court order, marriage certificate, divorce decree, or other acceptable document record) to be eligible for any payment under the Settlement.

If you are submitting a claim on behalf of a Class Member who is deceased or incapacitated, you **MUST** provide proof of your authority to act on their behalf. For a deceased Class Member, such proof may include

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a death certificate, letters testamentary, letters of administration, or other court-issued documentation. For an incapacitated Class Member, such proof may include a power of attorney, letter of authority or representation, or other acceptable documentation. Failure to provide the required proof will result in denial of your claim(s).

Proof of Payment Documents – Required To Be Eligible For Up To Full Reimbursement

To be eligible for up to full reimbursement for any or all of the \$15 co-pay(s) listed on your Claim Form, you must submit proof of payment of each co-pay. Acceptable proof includes a receipt, cancelled check, bank statement, credit card statement, or a written letter from the provider confirming that you paid the co-pay (use the provider form letter attached to your Claim Form). Any proof of payment you submit must be substantially consistent with Emblem's data provided on the Claim Form.

Please do not send original documents. Please redact – blacken out or otherwise make un-readable – any sensitive information from the documents. The documents you submit will not be returned to you.

If You Do Not Have Documentation that You Paid a Co-Pay

If you do not have proof of payment for any or all of the co-pay(s) listed on the Claim Form, you can still be eligible for a partial reimbursement. You must submit the completed Claim Form and sign the section affirming that you actually paid the co-pay(s). All Claim Forms will be reviewed by the Claims Administrator, and if the Claims Administrator approves the claim as eligible for a partial reimbursement, any reimbursement for *co-pays for which you do not have proof of payment* will be limited up to 40% of the co-pay amount, up to a maximum of \$100.

Claim Form Submission – Online or By Mail ONLY (There is no email submission)

You may choose to submit a claim either online through the settlement website portal **or** by mail. You cannot submit your claim using both methods and you cannot send in a claim via email.

Your Claim Form and the documents you submit contain Protected Health Information (“PHI”) under the Health Insurance Portability and Accountability Act (“HIPAA”). Therefore, submission of your Claim Form or documents by email is not permitted.

Online Submission

To submit your Claim Form online, use the link or QR code on the Claim Form to enter the settlement website portal specially created by the Claims Administrator. Then, follow the directions for authentication, complete and sign the online customized Claim Form, choose your preferred method of payment, and upload any supporting documents. The deadline for submitting all information and documents is October 30, 2026. The authentication procedure requires you to use the unique Claimant ID number provided on the Claim Form, along with your member ID number from the front of your medical GHI Senior Care insurance card.

If you choose to submit online, you will have access to a custom dashboard, which will include a table that will allow you to manage and monitor the status of your claims. The custom dashboard will include a link to your customized pre-populated Claim Form that will be fillable online and will allow for a digital signature. You will be able to start a claim and finish it at a later time without losing any information. If you choose to submit online, you will be able to edit any information and add any additional documents. You may make any changes or additions until the Claims Deadline, October 30, 2026, after which the online

claim links will be **deactivated**. You will still have access to your dashboard where you will be able to see near-real-time status of your claim.

Submission By Mail

For mail submission, send the completed and signed Claim Form and any supporting documents so that it is postmarked by **October 30, 2026**, to:

Claims Administrator
at Senior Care Co-Pay Settlement
c/o Atticus Administration, PO Box 64053,
St. Paul, MN 55164

If you need to change your submission or add documents to your already submitted Claim Form, you must do so ***before the Claims Deadline, October 30, 2026***. Simply contact the Claims Administrator for assistance. Similarly, for information on the status of your claim, you will need to contact the Claims Administrator.

Claim Submission Must be Timely

To be eligible for any payment from the Settlement, the signed and completed Claim Form and all documents must be submitted online, or by mail and postmarked, by October 30, 2026. (This includes documentation showing proof of payment, and, if applicable, documents proving legal name change or legal authority to submit a claim on behalf of a Class Member.) Late submissions will not be accepted, and failure to submit the Claim Form by **October 30, 2026** will result in the claim being denied.

Claim Form and Documentation Review

The Claims Administrator will review all Claim Form submissions for timeliness, accuracy, completeness, and whether the documents submitted are sufficient.

- If your Claim Form was not submitted by the Claims Deadline, it will be denied.
- If the Claims Administrator determines that the Claim Form you submitted was incomplete, inaccurate, unsigned, or the documents you submitted were inadequate or insufficient, you will be sent a “cure letter” by the Claims Administrator. The cure letter will explain what can be done to fix the problem. Different or additional documents might be needed as proof of payment, or you might need to provide different evidence of a legal name change or legal authority. The cure letter is intended to give you an opportunity to correct and/or clarify the submitted Claim Form, and/or submit additional documents.

The Claims Administrator’s “cure letter” with respect to legal name change or legal authority

If you do not timely respond to the Claims Administrator’s request to either sign, correct, and/or clarify the submitted Claim Form and/or provide missing information or additional documents with respect to a legal name change or legal authority to sign on behalf of the Class Member, your claim will be denied. Please follow the directions in the cure letter and meet the deadline.

If your “cure response” with respect to a legal name change or showing legal authority to sign on behalf of the Class Member is deemed inadequate, incomplete, inaccurate, or insufficient by the Claims Administrator, your claim will be denied.

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WWW.SENIORCARECOPAYSETTLEMENT.COM OR CALL TOLL-FREE 1-800-814-2610.**

The Claims Administrator’s “cure letter” with respect to payment of co-pay(s)

If you do not timely respond to the Claims Administrator’s request to correct a deficiency on the submitted Claim Form that is not based upon proof of payment (such as not checking a box that was required or missing a signature), and the Claims Administrator is unable to process one or more of your claims, those claims will be denied.

If the cure letter requests different or additional proof of payment of a co-pay, and you do not respond, or the additional documents submitted are not deemed adequate or sufficient by the Claims Administrator, that particular claim will be deemed an Undocumented Claim. That means that instead of being eligible to receive up to a full reimbursement of that co-pay, you will be eligible for reimbursement of up to 40% of that co-pay. (And remember, a Class Member may be eligible to receive a maximum of up to \$100 for all Undocumented Claims.)

Remember to sign the affirmation on the Claim Form. A signature is required for any and all reimbursements.

6. In what form will my payment be issued?

For online submissions **ONLY**, you will have the option to select your preferred payment method on the online Claim Form. You can choose to receive payment by PayPal, Venmo, Zelle, direct deposit, or a physical check by mail.

For mail submissions, you will be sent a physical check by mail.

7. When will I get paid?

Payments will only be disbursed after the Court grants final approval of the Settlement. If there are any appeals, those appeals must be resolved before payments can be issued, which can take time. Please be patient.

The Court has scheduled a Final Approval Hearing for March 24, 2027. Please visit the Settlement Website at www.SeniorCareCopolySettlement.com to find out whether the Court has entered final Settlement approval and when payments will be made.

8. How do I opt out or request exclusion from the Settlement?

If you do not wish to be included in this Settlement (which means you will not be eligible to receive any reimbursement you may be entitled to under it), you can request to opt out. A request to opt out (referred to here as a “Request for Exclusion”) can only be submitted via U.S. Mail. You must send via U.S. Mail a signed, written notice of your intent to exclude yourself – or “opt out” – from the Settlement Class to the Claims Administrator at the address below; and it must be postmarked no later than October 15, 2026.

Senior Care Co-Pay Settlement
c/o Atticus Administration
PO Box 64053
St. Paul, MN 55164

You can only request exclusion for yourself, and not for anyone else. Your written Request for Exclusion must clearly state your intent to be excluded from the Settlement Class and it must identify the case name and include your name, address, and telephone number. If you are represented by an attorney (for the purpose of opting out), identify the attorney. The Request for Exclusion letter must be physically signed by the person(s) seeking exclusion; and must also contain a statement to the effect that “I hereby request to be excluded from the proposed Settlement Class in *‘Bianculli, et al v. City of New York Office of Labor Relations, et al.’*” If you do not submit a timely (postmarked no later than October 15, 2026) and valid

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Request for Exclusion, you will remain a member of the Settlement Class. As a Member of the Settlement Class, you are entitled to all eligible Settlement benefits and will be bound by all terms and conditions of the Settlement, including provisions regarding Released Claims and Release in §1.42 and §4 of the Settlement Agreement. Your Request for Exclusion will be deemed void and of no force or effect if you also file a valid and timely Claim Form.

If you submit a valid Request for Exclusion from the Settlement Class, you will not be bound by the terms of the Settlement and cannot object to the Settlement. But you will retain the right to file your own lawsuit regarding the claims being resolved by this Settlement.

9. How do I object to the Settlement?

If you disagree with or object to the Settlement – or any part of it – you can submit an objection for the Court to review. (Submitting an objection is different from opting out. Opting out means you are not part of the Settlement Class, cannot object to any part of it during the Court’s evaluation of the Settlement, but can bring your own lawsuit. Objecting means you disagree with some part of the Settlement and want the Court to consider your complaint before approving or disapproving the Settlement.) Submitting an objection gives you the chance to tell the Court why you think the Settlement as a whole or certain portions of it should not be approved in whole or in part. Objecting to the Settlement does not exclude you from the Settlement Class. You may submit a Claim Form (if one is attached to this Notice), be eligible for a reimbursement, *and still* file an objection. You may also request to speak at the Court’s final hearing about your objection.

If you want to object to the Settlement or any parts of it or to appear at the Final Approval Hearing and tell the Court why the Settlement should not be approved and why a final judgment should not be entered, please follow the instructions set forth in this section.

Filing an objection requires you to enter an appearance in the Litigation, at your own expense. You may do so individually or through counsel of your own choice. Along with any objection you may wish to file, you may also submit any briefs, papers, statements, or other materials you want the Court to consider by November 30, 2026.

All written objections must be filed with the Court and sent to both Defendants’ Counsel and Class Counsel pursuant to the contact information provided below. You may file the objection and documents either by mailing them to the Court at the address below, by filing them in person at the Courthouse, or by filing them electronically on the New York State Court Electronic Filing (NYSCEF) website.

COURT	CLASS COUNSEL	DEFENDANTS' COUNSEL
Hon. Lyle E. Frank Part 11, General IAS 60 Centre Street Room 412 New York, NY 10007	Jacob Gardener, Esq. Walden Macht Haran & Williams LLP 250 Vesey Street, 27th Floor New York, New York 10281 jgardener@wmhwlaw.com Steve Cohen, Esq. Pollock Cohen LLP 111 Broadway, Suite 1804 New York, New York 10006 Scohen@pollockcohen.com	Jeffrey D. Chansler, Esq. Carlos G. Manalansan, Esq. EmblemHealth 55 Water Street New York, New York 10041 Maria T. Galeno, Esq. Jay D. Dealy, Esq. Pillsbury Winthrop Shaw Pittman LLP 31 West 52nd Street New York, New York 10019 maria.galeno@pillsburylaw.com jay.dealy@pillsburylaw.com Vijeta Jasuja, Esq. Richard Schulsohn, Esq. Andrew Gelfand, Esq. Corporation Counsel of the City of New York 100 Church Street, Room 3-120 New York, New York 10007 vjasuja@law.nyc.gov rschulso@law.nyc.gov agelfand@law.nyc.gov ECF@law.nyc.gov

Your objection must clearly: (a) state your full name, current mailing address, and telephone number; (b) state that you are a member of the Settlement Class; (c) identify the specific factual and legal grounds for the objection; (d) identify all counsel representing you, if any; (e) include a list, including case name, court, and docket number, of all other cases in which you as well as your counsel have filed an objection to any proposed class action settlement in the past five (5) years; and (f) state whether you or your counsel intend to appear at the Final Approval Hearing.

You will not be excluded from the Settlement Class by filing an objection. If you have submitted a Request for Exclusion from the Settlement, you cannot file an objection.

If you fail to submit an objection in the manner and by the date set forth above, you will be deemed to have waived any objections to the Settlement and you shall be forever barred from raising such objections.

10. Do I have a lawyer in the case?

Yes. Unless you request exclusion from the Settlement Class, the Class Representatives and the Settlement Class are represented by the attorneys and firms shown below (they are the "Class Counsel"). These individuals are experienced class action attorneys and the Court decided that they are qualified to represent the Settlement Class.

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POLLOCK COHEN LLP	WALDEN MACHT HARAN & WILLIAMS LLP
Steve Cohen, Esq. 111 Broadway, Suite 1804 New York, New York 10006 Scohen@pollockcohen.com	Jacob Gardener, Esq. 250 Vesey Street, 27 th Floor New York, New York 10281 jgardener@wmhwlaw.com

11. When and where will the Court decide whether to approve the Settlement?

The Court will hold a Final Approval Hearing on March 24, 2027, at 2:15 p.m., at the Supreme Court of the State of New York, County of New York, located at 60 Centre Street, Room 412, New York, New York 10007. At this hearing, the Court will consider whether to grant final approval of the Settlement. If there are objections, the Court will consider them and will listen to people who have asked in advance to speak at the hearing. The Court will decide whether to grant approval of the agreed-upon Class Counsel Fees and Costs, Service Awards, and the Plan of Allocation setting forth the order in which payments will be made. If the Court grants final approval of the Settlement, the lawsuit and all claims therein will be settled and will end; it will be dismissed with prejudice against the Defendants. Unless you specifically exclude yourself from the settlement as described above, you will fully release your claims against Defendants. The claims you are releasing as a member of this settlement are fully set forth in the Released Claims and Release in §1.42 and §4 of the Settlement Agreement.

It is uncertain how long the Court will take to decide whether to grant final approval of the Settlement.

12. Do I have to come to the hearing?

No. Class Counsel will answer questions the Court may have. You are welcome to attend at your own expense. If you submit an objection, you do not have to come to Court to talk about it. As long as you send your written objection on time, the Court will consider it. If you retain your own lawyer, your lawyer can attend on your behalf.

13. May I speak at the hearing?

You may ask the Court for permission to speak at the Final Approval Hearing. To do so, you must send a letter saying that it is your “Notice of Intention to Appear in *Bianculi, et al. v. City of New York, et al.*, Index No. 160234/2022.” Be sure to include your name, address, telephone number, and signature. Your Notice of Intention to Appear must be received no later than November 30, 2026, and must be sent to the Court, Class Counsel, and Defendants’ Counsel, at the addresses provided in Question 9.

14. How do I get more information?

This Notice is only a summary; it does not fully describe the claims and defenses of the parties, or the full terms of the proposed Settlement. For more information, please visit the Settlement Website at www.SeniorCareCopaySettlement.com. The website includes answers to frequently asked questions about the Settlement and copies of legal documents filed in this Lawsuit, including the Settlement Agreement and the Court’s Preliminary Approval Order. If you are not able to find any specific documents or any answers that you seek on the website, you can also contact the Claims Administrator by telephone at 1-800-814-2610 or by email at SeniorCareCopaySettlement@AtticusAdmin.com. You may also write to the Claims Administrator at:

Senior Care Co-Pay Settlement
c/o Atticus Administration
PO Box 64053
St. Paul, MN 55164

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If this Notice was forwarded to you by the postal service or was sent to an address that is not current, or your address changes, please notify the Claims Administrator immediately to ensure that future Settlement communications properly reach you.

**FOR MORE INFORMATION OR QUESTIONS ABOUT THIS SETTLEMENT VISIT
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